

been withdrawn and, according to R. 36(1) EPC, an applicant could only file a divisional application relating to any pending earlier European patent application. The Legal Board saw no difference between the case of an application deemed to be withdrawn due to the non-payment of fees (which had been dealt with in J 4/11, OJ 2012, 516) and an application that had been voluntarily withdrawn by a communication from the applicant. In neither case was the withdrawal the result of a decision taken by the Office. From the wording of Art. 67(4) EPC ("withdrawn" in contrast to "finally refused"), and the further clarification given in decision J 4/11, it could be concluded that an application was no longer pending as from the moment it had been withdrawn. This was not altered by the possibility of filing a request for correction of a withdrawal under R. 139 EPC, nor by the actual filing of such a request. It was not necessary for the board to decide what the position would have been if the request for correction pertaining to the parent application had been allowed.

3.6. Time limits under Rule 36(1)(a) and (b) EPC in the version in force between 1 April 2010 and 31 March 2014

In the original version of R. 25 EPC 1973 of 1 October 1988, a divisional application could be filed only up to the date on which the applicant approved the text in which the patent was to be granted under R. 51(4) EPC 1973 (in the version which entered into force on 1 September 1987). For a brief overview of the case law in respect of the version of 1 October 1988 see "Case Law of the Boards of Appeal of the EPO", 6th edition 2010, p. 389-390. Under R. 25(1) EPC 1973 in the amended version of 2 January 2002, the applicant could file a divisional application in respect of any pending earlier European patent application (see "Case Law of the Boards of Appeal of the EPO", 6th edition 2010, p. 390-391). This requirement of pendency was adopted into R. 36(1) EPC.

Between 1 April 2010 and 31 March 2014, R. 36(1) EPC additionally required that the divisional application must be filed within the time limits laid down in R. 36(1)(a) and (b) EPC. The nature of the communication starting the time limit for voluntary division (R. 36(1)(a) EPC) was specified with effect from 26 October 2010. The requirements under R. 36(1)(a) and (b) EPC were removed in the amended version of R. 36(1) EPC which entered into force on 1 April 2014. On the interpretation of R. 36(1)(a) and (b) EPC see J 13/13, summarised in "Case Law of the Boards of Appeal of the EPO", 9th edition, chapter II.F.3.6.2.

4. Procedural questions

4.1. Procedural independence of divisional application

4.1.1 Principles

The procedure defined in the EPC for the filing of divisional applications is self-contained and complete (see e.g. T 587/98, OJ 2000, 497). The procedure concerning the divisional application is, in principle, independent from the procedure concerning the parent application. Although there are some connections between the two procedures (e.g. concerning time limits), actions (or omissions) occurring in the procedure concerning the

parent application after the filing of the divisional application should not influence the procedure concerning the latter (G 4/98, OJ 2001, 131). The parent application also does not have any procedural priority over the divisional application, which is like any other application and in particular does not have subordinate procedural status (T 1177/00, T 1176/00).

In J 12/18 the Legal Board recalled that only after the filing of a divisional application is its fate separated from changes concerning the earlier application. The nature of a divisional application, which is derived from a parent application thereby benefiting from the parent's date of filing and priority rights, implies that the divisional cannot be broader than the parent application, neither its subject-matter (Art. 76(1) EPC) nor its geographical coverage. Hence, in the case in hand, designated states forfeited in the parent application at the time of filing the divisional could not be revived in the divisional.

4.1.2 No preclusive effect of a decision with respect to identical requests in the other procedure

The consequence of the procedural independence of the divisional application can be seen in T 1254/06. In this case, the examining division had refused the divisional application and the applicant did not appeal. In the appeal proceedings concerning the parent application (in which the applicant had made the same requests as in the proceedings concerning the divisional application) the question arose whether the legal force of a **refusal decision** in respect of the divisional application also affected the parent application procedure to the extent that it could prevent the EPO (including the boards of appeal) from dealing with the substance of identical requests. The board stated that the principle that both proceedings were independent meant that a refusal decision in one procedure did not have a preclusive effect with respect to identical requests in the other procedure. This applied in particular when, as in this case, the refusal decision was made not by the board of appeal but by the examining division, because the first-instance administrative decision did not have true *res judicata* effect. For decisions dealing with the issue of a cross-procedural *res judicata* effect, see chapter II.F.2.4.3 above.

4.1.3 Filing a divisional application not a response to a communication under Article 94(3) EPC

In case J 5/07 the appellant had failed to file observations according to Art. 96(2) EPC 1973 (Art. 94(3) EPC). The appellant's request for further processing was rejected on the ground that the omitted act was not completed in due time (Art. 121(2) EPC 1973; R. 135(1) EPC). The appellant filed an appeal against this decision, arguing that the omitted act was in fact completed because in response to the communication a divisional application was filed by the appellant. The Legal Board held that, as a consequence of the principle that a divisional application was legally and administratively separate and independent from the grant proceedings concerning the parent application, the filing of a divisional application could not constitute a response to the invitation by the examining division in the parent application within the meaning of Art. 96(3) EPC 1973 (now Art. 94(4) EPC).

4.1.4 Intention to file divisional application immaterial to admissibility of appeal against grant of the parent

The board in T 591/05 could not see how the filing and the status of a divisional application might have had any bearing on the admissibility of the appeal against the parent (i.e. on the question of whether the appellant was adversely affected). In particular, any allegation relating to the circumstances under which the divisional application had been filed (here: appellant had expressed the intention to file a divisional application) might have been pertinent to the legal status of the divisional application, but was irrelevant to the issue of the admissibility of the appeal.

4.1.5 Submissions made in the parent procedure

In T 1705/11 the board held that facts, evidence and requests or submissions made or filed in the parent procedure were not automatically part of the divisional procedure. A general citation or a mere reference to facts and/or evidence, such as to prior art documents, filed in the parent procedure but not physically filed or incorporated into the divisional application procedure did not constitute a reservoir upon which a party might draw at its convenience and at any time in the divisional application procedure.

4.2. Designation of contracting states in a divisional application

4.2.1 Deemed designation of all states designated in earlier application at the date of filing of divisional

According to Art. 76(2) EPC 1973, the European divisional application shall not designate contracting states which were not designated in the earlier application. Pursuant to Art. 76(2) EPC all the contracting states designated in the earlier application at the time of filing of a divisional application are deemed to be designated in the divisional application. For divisional applications filed after 1 April 2009, only one designation fee has to be paid (Art. 2(1), item 3 RFees); if this designation fee is not paid in due time, the application is deemed to be withdrawn (R. 36(4) EPC, R. 39(2) EPC).

4.2.2 Designated state forfeited in the parent application at the time of filing the divisional

In J 12/18, interpreting Art. 76(2) EPC in accordance with the recognised rules of interpretation, the Legal Board confirmed that under this provision only those states that had been designated in the earlier application at the time of filing the divisional could be designated in the divisional. A designated state forfeited in the parent application at the time of filing the divisional could not be revived in the divisional one. The fact that the application was referred to as a "divisional" application under Art. 76(2) EPC implied by definition that it was divided from the earlier application and thus at the time of filing it could not be broader than the earlier application it derived from. Only after the filing of the divisional application was its fate separated from changes concerning the earlier application. Likewise, in the context of the required systematic interpretation of Art. 76(2) EPC the Legal Board noted that the nature of a divisional application, which was derived from a parent application, thereby benefiting from the parent's date of filing and

priority rights, implied that the divisional could not be broader than the parent application, neither as to its subject-matter (Art. 76(1) EPC) nor its geographical cover. Thus Art. 79 EPC had to be considered. According to Art. 79(3) EPC the applicant could withdraw the designation of a Contracting State at any time up to the grant of the European patent. However, further possibilities, in particular the addition of a Contracting State, which had previously been excluded by withdrawal, were not foreseen in Art. 79 EPC. A revival of the withdrawn designation could only be achieved under particular circumstances if the requirements for a correction under R. 139 EPC were fulfilled. This, for reasons of consistency, had to apply also to a divisional derived from the earlier application. See also the parallel decisions J 13/18, J 14/18 and J 3/20, which contain identical reasoning on this point.

4.2.3 Full effect of designation up to the due date for payment

In G 4/98 (OJ 2001, 131) the Enlarged Board of Appeal found that the wording of Art. 78(2) and Art. 79(2) EPC 1973 and the European patent system clearly indicated that up to the due date for payment of the designation fees, the designations had full effect. Only if the designation fees were not paid in due time would the designations not have any effect with respect to acts to be performed after that date, such as the filing of a divisional application. Retroactivity of the effects of non-payment of designation fees would occur only where the EPC explicitly provided for it, i.e. in the case of provisional protection (Art. 67(4) EPC 1973).

4.2.4 Payment of fee for each designated State – case law concerning situation prior to 1 April 2009

For case law concerning the situation regarding divisional applications filed before 1 April 2009, where designation fees had to be paid for each designation of a contracting state, see "Case law of the Boards of Appeal of the EPO", 9th edition 2019, II.F.4.2.2.

4.3. Correction of errors in a divisional application

In J 17/97 and J 18/97 the representative had filed the divisional application under a different name than the parent application. The Receiving Section had thus refused to treat the application as a divisional application. The representative filed a request for correction of errors pursuant to R. 88 EPC 1973 (now R. 139 EPC) to replace the name of the applicant of the divisional application with the name of the applicant of the parent application. The Legal Board rejected the request as the appellant had not proved that the divisional application had been filed in error under the wrong name. R. 88 EPC 1973 may not be used to enable a person to give effect to a change of mind or to a subsequent development of plans.

In T 1008/99, the request for correction of errors concerned a divisional application which had been filed with a wrong description unrelated to the earlier (parent) application. The wrongly filed description was therefore to be replaced by the description of the parent application. The board rejected the request and held that, for the purposes of

R. 88 EPC 1973, the error had to be **apparent from the divisional application itself**, and the parent application could not be used to demonstrate that the error was obvious. Even if it was apparent from the filed description, claims and drawings that they did not belong together, it was not immediately clear from the divisional application itself which of these parts was incorrect.

4.4. Search fee for a divisional application

It was confirmed in J.7/13 that the relevant provisions for determining the amount of the search fee to be paid for a European divisional application are R. 36(3) EPC and Art. 2(1), item 2, RFees. The time limit for payment in R. 36(3) EPC can only refer to the actual date on which the divisional application documents were received at the EPO. The amount payable does not depend, as contended by the appellant, on the fictitious date of filing accorded to the application under Art. 76(1) EPC, which is conditional on the fulfilment of substantive requirements and likewise has substantive effects.

5. Prohibition of double patenting

5.1. Introduction

This chapter primarily deals with double patenting arising from the filing of a divisional application, but also treats the matter as it may arise in other procedural situations.

In G.4/19 (OJ 2022, A24) the Enlarged Board of Appeal endorsed the **narrow reading of the term "double patenting"** given by the referring board (T.318/14, OJ 2020, A104, points 17 to 23 of the Reasons). Double patenting in this narrow sense may arise in situations in which two or more European patent applications with **overlapping territorial scope**, directed to the **same subject-matter** and having the **same effective date** are filed by the **same applicant**. Because such applications do not form part of the state of the art according to Art. 54(2) or (3) EPC, their prosecution could lead to the same applicant being granted two or more patents directed to the same subject-matter and having an identical or at least overlapping territorial scope. There are three situations in which such European patent applications could have the same effective date: (i) a European patent application is filed on the same date as another European patent application of the same applicant (parallel filings); (ii) a European patent application is filed as a European divisional application (Art. 76(1) EPC) in respect of an earlier European patent application (divisional application); (iii) a European patent application is filed claiming the priority (Art. 88 EPC) of an earlier European patent application (internal priority) or both claim priority from the same national application (see G.4/19, point 9 of the Reasons).

In view of divergent case law on the **legal basis** for the prohibition of double patenting and the doubts raised as to whether the EPC contained any provision at all which could serve as legal basis, in T.318/14 the board referred points of law regarding the legal basis for the prohibition of double patenting, and the corresponding conditions for a refusal on this basis, to the Enlarged Board of Appeal in accordance with Art. 112(1)(a) EPC.